Master Services Agreement

This Master Services Agreement (the "**Agreement**") is entered into as of 25 June 2025 (the "**Effective Date**") between **Arcadia Retail Inc.**, a retailer with its headquarters in the United States (the "**Customer**"), and **Meridian Cloud Services LLC** (the "**Supplier**"). The Customer and the Supplier are each a "**party**" and together the "**parties**".

This Agreement consists of these master terms, Schedule 1 (Services and Service Levels), Schedule 2 (Data Protection) and Order Form No. 1. If there is a conflict, the master terms prevail over the Schedules, and the Order Form prevails over the master terms only to the extent it expressly states that it overrides a specified clause.

1. Definitions and Interpretation

1.1 "**Services**" means the cloud and related IT services described in Schedule 1 and the Order Form, together with any services reasonably incidental to them.

1.2 "**Fees**" means the fees set out in the Order Form.

1.3 "**Customer Data**" means all data, including Personal Data, that the Customer or its users submit to, or that is generated through, the Services.

1.4 "**Personal Data**" has the meaning given in the DPA.

1.5 "**DPA**" means the data processing agreement described in clause 10.

1.6 "**Intellectual Property Rights**" means patents, copyright, trade marks, database rights, rights in know-how and all other similar rights anywhere in the world.

1.7 Headings do not affect interpretation. "Including" means "including without limitation".

2. Term and Renewal

2.1 This Agreement begins on the Effective Date and, unless terminated earlier in accordance with its terms, continues until 25 June 2029 (the "**Initial Term**"), being a period of 48 months.

2.2 At the end of the Initial Term, and of each Renewal Term, this Agreement renews automatically for a successive period of 12 months (each a "**Renewal Term**") unless a party gives the other at least 120 days' written notice of non-renewal before the end of the then-current term.

2.3 The Initial Term and any Renewal Terms together are the "**Term**".

3. The Services

3.1 The Supplier shall provide the Services to the Customer from the Effective Date in accordance with this Agreement, the Order Form and Schedule 1.

3.2 The Supplier shall perform the Services with reasonable skill and care, using suitably qualified personnel, and in compliance with applicable law.

3.3 The Customer shall provide the cooperation, access and information reasonably required by the Supplier to perform the Services. The Supplier is not liable for a failure to perform to the extent caused by the Customer's failure to do so, provided the Supplier has promptly notified the Customer.

3.4 Changes to the Services or the Order Form are effective only if set out in a written change request signed by both parties.

3.5 The Supplier may use subcontractors with the Customer's prior written consent, not to be unreasonably withheld. The Supplier remains responsible for the acts and omissions of its subcontractors as if they were its own.

4. Service Levels and Reporting

4.1 The Supplier shall meet the service levels in Schedule 1 and the Order Form, including availability of at least 99.95% in each calendar month.

4.2 If monthly availability falls below the target, the Supplier shall provide service credits of 5%, 10% or 25% of the monthly Fee, as determined by the availability bands in the Order Form. Service credits are applied against the next invoice or, after the Term, paid within a reasonable period. Service credits are a price adjustment reflecting reduced service value and are without prejudice to the Customer's other rights and remedies, including termination for material breach.

4.3 The Supplier shall deliver to the Customer a monthly availability report and shall hold a quarterly business review with the Customer to discuss performance, risks, security and planned changes.

4.4 The Supplier shall notify the Customer of any security incident affecting the Services or Customer Data within 24 hours of becoming aware of it, and shall provide information, remediation and reasonable cooperation as the Customer reasonably requests.

5. Fees, Invoicing and Payment

5.1 The Customer shall pay the Fees set out in the Order Form. The annual Fees and the total contract value over the Initial Term are stated in the Order Form.

5.2 The Supplier shall invoice the Fees in accordance with the Order Form. Each invoice must be valid, meaning it identifies this Agreement, itemises the Services and Fees and any applicable taxes, and is addressed to the Customer.

5.3 The Customer shall pay undisputed invoices within 45 days of receipt of a valid invoice.

5.4 If the Customer disputes an invoice in good faith, it shall notify the Supplier promptly, pay any undisputed portion, and the parties shall work to resolve the dispute promptly. The Supplier shall continue to perform the Services during any dispute.

5.5 Fees exclude sales, use, value-added and similar taxes, which the Customer shall pay where properly chargeable, other than taxes on the Supplier's income, property or employees.

6. Confidentiality

6.1 "**Confidential Information**" means all non-public information disclosed by or for a party (the "**Discloser**") to the other (the "**Recipient**") that is marked confidential or would reasonably be understood to be confidential, including Customer Data and the terms of this Agreement. It excludes information that is or becomes public through no fault of the Recipient, was lawfully known to the Recipient beforehand, is independently developed without use of the Discloser's information, or is lawfully received from a third party without restriction.

6.2 The Recipient shall keep Confidential Information confidential, use it only to perform or receive the Services and exercise its rights under this Agreement, and disclose it only to its personnel, advisers and permitted subcontractors who need to know it and are bound by equivalent duties.

6.3 The Recipient may disclose Confidential Information where required by law or a court or regulator, provided it gives the Discloser prompt notice where lawful and discloses only what is required.

6.4 The obligations in this clause 6 survive for 3 years after this Agreement ends.

7. Intellectual Property

7.1 Each party retains its Intellectual Property Rights existing before the Effective Date or developed independently of this Agreement.

7.2 The Customer owns all Customer Data and grants the Supplier a limited, non-exclusive licence during the Term to use it solely to provide the Services.

7.3 The Supplier grants the Customer a non-exclusive, non-transferable right during the Term to access and use the Services and any Supplier materials supplied with them for the Customer's and its affiliates' internal business purposes.

7.4 Unless the Order Form provides otherwise, Intellectual Property Rights in any deliverable created specifically for the Customer and identified as such in the Order Form vest in the Customer on payment, and the Supplier grants the Customer a perpetual licence to any Supplier pre-existing materials embedded in it to the extent necessary to use it.

8. Warranties

8.1 Each party warrants that it has the authority to enter into and perform this Agreement.

8.2 The Supplier warrants that for 90 days from the start of the Services, and for 90 days after each material change or deliverable is delivered, the Services will conform in all material respects to Schedule 1 and the Order Form (the "**Warranty Period**"). The Supplier shall promptly correct any non-conformity notified during the Warranty Period at no additional charge, and if it cannot do so within a reasonable time, the Customer may obtain a refund of the Fees paid for the non-conforming Services.

8.3 The Supplier further warrants that the Services will not knowingly contain malicious code and that it will perform the Services in compliance with applicable law.

8.4 Except as expressly stated in this Agreement, and to the extent permitted by law, all other warranties and conditions, express or implied, are excluded.

9. Indemnity, Liability and Insurance

9.1 The Supplier shall defend and indemnify the Customer and its affiliates against third-party claims, and resulting losses, damages and reasonable costs, arising from (a) an allegation that the Services or Supplier materials infringe a third party's Intellectual Property Rights, or (b) the Supplier's breach of clause 6 or the DPA, or its gross negligence or wilful misconduct.

9.2 The Customer shall defend and indemnify the Supplier against third-party claims arising from the Customer's use of the Services in breach of this Agreement or the Customer's unlawful instructions regarding Customer Data.

9.3 The indemnified party shall give prompt notice of the claim, allow the indemnifying party sole control of its defence and settlement (provided no settlement admits fault on behalf of the indemnified party without its consent), and provide reasonable assistance at the indemnifying party's cost.

9.4 Subject to clause 9.6, each party's aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence) or otherwise, is limited to one (1) times the Fees paid or payable in the twelve (12) months preceding the claim.

9.5 Subject to clause 9.6, neither party is liable for indirect or consequential loss, or for loss of profit, revenue or goodwill to the extent that such loss is indirect.

9.6 Nothing in this Agreement limits or excludes liability for fraud, wilful misconduct, death or personal injury caused by negligence, or any liability that cannot be limited by law. Amounts due under clause 5 and service credits under clause 4 do not count towards or fall within the exclusion in clause 9.5.

9.7 The Supplier shall maintain throughout the Term, with reputable insurers, insurance cover of at least USD 5,000,000 per claim, and shall provide evidence of cover on request.

10. Data Protection

10.1 The Services involve the processing of Personal Data of the Customer's customers and employees. A Data Processing Agreement has been or will be executed alongside this Agreement and forms part of it as Schedule 2 (the "**DPA**").

10.2 The Supplier shall process Personal Data only on the Customer's documented instructions and in accordance with the DPA and applicable data protection law, and shall maintain appropriate technical and organisational security measures.

10.3 On expiry or termination, the Supplier shall, at the Customer's choice, return or securely delete Customer Data as set out in the DPA and Schedule 1.

11. Termination

11.1 The Customer may terminate this Agreement, or any Order Form, without cause on 90 days' written notice to the Supplier.

11.2 Either party may terminate this Agreement by written notice if the other (a) commits a material breach that is not remedied within 30 days of written notice requiring remedy, or (b) becomes insolvent, enters liquidation, makes an assignment for the benefit of creditors or is subject to similar proceedings.

11.3 On termination or expiry, the Customer shall pay undisputed Fees for Services performed up to the termination date, and the Supplier shall refund any prepaid Fees for Services not performed. The Supplier shall provide reasonable transition assistance for a period reasonably required by the Customer, at the rates in the Order Form or, if none, at reasonable rates.

11.4 Clauses 1, 5 (as to accrued amounts), 6, 7, 9, 10.3, 11.3, 12 and 13, and any other provisions intended to survive, survive termination or expiry.

12. General

12.1 **Governing law.** This Agreement and any dispute arising out of or in connection with it are governed by the laws of Delaware, without regard to its conflict-of-laws rules. Each party submits to the exclusive jurisdiction of the state and federal courts located in Delaware.

12.2 **Assignment.** Neither party may assign or transfer this Agreement without the other's prior written consent, not to be unreasonably withheld, except that either party may assign it to a successor to all or substantially all of its relevant business on written notice, provided the assignee is not a competitor of the other party.

12.3 **Notices.** Notices must be in writing and delivered by hand, recognised courier or email with confirmation of transmission to the addresses stated in the Order Form (or as later notified). Notices are deemed received on delivery or, for email, on the next business day after sending.

12.4 **Force majeure.** Neither party is liable for delay or failure caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable efforts to mitigate. This does not excuse payment obligations or the Supplier's disaster recovery obligations in Schedule 1.

12.5 **Entire agreement.** This Agreement is the entire agreement between the parties on its subject matter and supersedes all prior discussions and understandings. Each party acknowledges that it has not relied on any statement not set out in it.

12.6 **Amendment and waiver.** Amendments must be in writing and signed by both parties. A failure or delay in exercising a right is not a waiver of it.

12.7 **Severability.** If a provision is held invalid or unenforceable, the remainder continues in effect.

12.8 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is an original.

13. Dispute Resolution

13.1 A party shall first refer any dispute to senior representatives of each party, who shall meet and attempt in good faith to resolve it within 30 days of written notice of the dispute.

13.2 This clause does not prevent a party from seeking urgent injunctive relief to protect its Confidential Information or Intellectual Property Rights.

Schedule 1 – Services and Service Levels

1. **Services.** The Supplier shall provide the managed cloud hosting, platform operation, monitoring and support services described in the Order Form for the Customer's retail systems.

2. **Service levels.** The Supplier shall meet the targets in the Service Level Table in the Order Form.

3. **Reporting.** The Supplier shall deliver a monthly availability report within a reasonable period after each month-end, and shall hold a quarterly business review.

4. **Security incidents.** The Supplier shall notify the Customer of security incidents within 24 hours of becoming aware of them.

5. **Exit.** On request, the Supplier shall return Customer Data in a commonly used, machine-readable format and then securely delete it, certifying deletion in writing.

Schedule 2 – Data Protection

The Data Processing Agreement between the parties, covering the processing of Personal Data of the Customer's customers and employees, has been or will be executed alongside this Agreement and is incorporated by reference. In the event of conflict regarding Personal Data, the DPA prevails.

Order Form No. 1

Item	Term
Customer	Arcadia Retail Inc.
Supplier	Meridian Cloud Services LLC
Effective Date	25 June 2025
Initial Term	Until 25 June 2029 (48 months)
Renewal	Automatic successive 12-month periods unless 120 days' written notice of non-renewal is given
Annual Fees	USD 2,400,000
Total contract value (Initial Term)	USD 9,600,000

Item	Term
Invoicing and payment	Undisputed invoices payable within 45 days of receipt of a valid invoice
Availability target	At least 99.95% each month
Service credits for availability misses	5%, 10% and 25% of the monthly fee, according to the severity of the miss
Security incident notification	Within 24 hours
Reporting	Monthly availability report; quarterly business review
Liability cap	One (1) times the Fees paid or payable in the preceding twelve (12) months
Insurance	At least USD 5,000,000 per claim
Warranty Period	90 days
Termination for convenience	Customer, on 90 days' written notice
Governing law	Laws of Delaware

Signatures

	For the Customer	For the Supplier
Party	Arcadia Retail Inc.	Meridian Cloud Services LLC
Name	Helena Cruz	Sofia Marchetti
Title	VP Technology Sourcing	Authorised Signatory
Signature	_____	_____
Date	15 June 2025	18 June 2025